

James Austin Ryan, III v. LG General Construction LLC, 26LC-0272

Hearing: Petition to Release Property from Mechanic's Lien

Date: July 23, 2026

TENTATIVE RULING

James Austin Ryan, III (Petitioner), as Trustee of the Jacqueline C. Tanner Family Trust dated 11/06/98 (Trust), filed this petition to release a mechanic's lien recording by LG General Construction, LLC (Respondent). Petitioner served Respondent with the Petition papers by certified mail on June 29, 2026, in compliance with Civil Code section 8486, subds. (b), (c). No opposition has been filed.

A mechanic's lien is unenforceable unless recorded within ninety days after completion of the work. (Civ. Code, § 8412.) Respondent recorded a mechanic's lien against Trust real property on January 12, 2026. Petitioner provides evidence that the work Respondent provided was complete no later than October 10, 2025. (Verified Petition for Release of Property from Mechanic's Lien (Petition), Exhs. F ["The sealer was applied on October 8th, 9th, and 10th, and the project was fully completed on October 10, 2025."]; G.) The mechanic's lien was, therefore, recorded more than ninety days after completion and is unenforceable.

In addition to a showing that Petitioner is entitled to the requested relief, Petitioner also has the burden of showing compliance with the procedural service requirements. (Civ. Code, § 8488(a).)

At least ten days before filing a petition for release, the property owner must give the claimant notice demanding that the claimant execute and record a release of the claim of lien. (Civ. Code, § 8482.) Petitioner did so here on February 5, 2026. (Petition, Exh. I.) The notice complies with Civil Code sections 8102 (contents of pre-filing notice) and 8106 (service of pre-filing notice).

As for Civil Code section 8484 (contents of petition), the exhibits attached to the Petition provide the required information and the Petition is verified.

Petitioner seeks an award of attorney's fees and costs. Civil Code section 8488, subd. (c) provides that the prevailing party is entitled to reasonable attorney's fees. The Court finds Petitioner is entitled to those fees and costs.

ORDER (PROPOSED)

The Petition is granted and the Trust real property is ordered released from Respondent's claim of lien. Petitioner is awarded reasonable attorney's fees and costs according to proof.